



Commission decides to refer Bulgaria to the Court of Justice of the European Union to ensure full transposition of EU electricity market rules

Brussels, 1 October 2026

Today, the European Commission decided to refer Bulgaria (INFR(2021)0015) to the Court of Justice of the European Union for failing to transpose into national legislation [Directive \(EU\) 2019/944](#) on common rules for the internal market for electricity, amending Directive 2012/27/EU.

Directive (EU) 2019/944 lays down key rules on the organisation and functioning of the EU electricity sector with a view to creating integrated, competitive, consumer-centred, flexible, fair and transparent electricity markets across the EU. It also aims to ensure high levels of consumer protection and to enable all consumers to participate actively in the energy market. A fully functioning internal electricity market is essential to deliver secure, affordable and clean energy to citizens and businesses in the Union.

Bulgaria was required to transpose the Directive by 31 December 2020. The Commission sent Bulgaria a letter of formal notice in February 2021 and a [reasoned opinion in April 2023](#) after concluding that not all provisions of the Directive had been transposed into national law. Having examined the replies submitted by Bulgaria and the notified national transposition measures, the Commission considers that Bulgaria has still not fully transposed the Directive. In particular, the Commission considers that key gaps remain as regards third-party access to the network, the authorisation procedure for new generation capacity, consumers' right to participate in collective switching schemes, and requirements linked to the use of flexibility in distribution networks. The Commission also found shortcomings concerning the tasks of the transmission system operator, notably as regards digitalisation, data management and the provision of non-frequency ancillary services, as well as the powers and duties of the national regulatory authority, including the monitoring of generation and storage investment, self-generated electricity and citizen energy communities, and the approval of methodologies for ancillary services.

The decision is part of the Commission's enforcement efforts to remove barriers in the Single Market in 11 focus areas, as announced in the [Communication "A simpler, clearer and better enforced EU Rulebook"](#) (COM(2026) 380 final, Annex II). Therefore, the Commission is referring Bulgaria to the Court of Justice of the European Union and requesting the Court to impose financial sanctions in accordance with Article 260(3) TFEU.

The Commission is taking legal steps to ensure the proper functioning of the internal electricity market across the EU and to protect consumers. As guardian of the Treaties, the Commission has to ensure the full and correct transposition of EU law into national legislation. When it comes to the enforcement of Directive (EU) 2019/944, the Commission currently has infringement procedures open against 10 Member States for failing to notify the complete transposition measures of the Directive by the deadline of 31 December 2020.

Background

[Directive \(EU\) 2019/944](#) sets out common rules for the generation, transmission, distribution, energy storage and supply of electricity, as well as consumer protection provisions, with the objective of improving and integrating the Union electricity market. It is a central part of the EU framework designed to support a more competitive, flexible and consumer-centred electricity system.

The Directive includes rules intended to empower consumers, strengthen retail markets, facilitate active participation in demand response, support the integration of renewable electricity, and establish clear responsibilities for market participants and system operators. Full transposition of these rules is necessary to ensure the proper implementation of the internal market for electricity across all Member States.

Under Article 258 of the Treaty on the Functioning of the EU (TFEU), if the Member State concerned does not comply with the reasoned opinion within the period laid down by the Commission, the latter may bring the matter before the Court of Justice of the European Union. Additionally, under Article 260(3) TFEU, the Commission can call on the Court of Justice of the EU to impose financial sanctions on the Member States that failed to fulfil their obligation to notify measures transposing a legislative directive.

For more information

[Directive \(EU\) 2019/944 on the internal market for electricity](#)

[EU infringement procedure](#)

[Infringement decisions database](#) and [infringements map and graphs](#)

[October 2026 Infringement cycle](#)

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